WapApp Platform Assessment

Digital Personal Data Protection (DPDP) - Complete Findings

Date: 28 October 2026

Document: Product and architecture findings for WapApp 2.0

Reference laws: Digital Personal Data Protection Act, 2023; DPDP Rules, 2025

Also reviewed: Official bilingual Gazette notification G.S.R. 846(E) (Hindi + English)

Disclaimer (please read)

This document records product/architecture findings only. It is not a legal opinion, audit certificate, or confirmation of full DPDP compliance. Penalty figures below are maximum ceilings from the DPDP Act Schedule; actual penalties (if any) depend on Data Protection Board inquiry and facts. Final Privacy Policy / Terms wording and vendor contracts must be reviewed by legal counsel before public use.

1. Current situation (as of assessment date)

WapApp is a multi-tenant WhatsApp Business messaging platform. It processes personal data such as phone numbers, names, message content and media to send/receive WhatsApp communications for customer accounts (tenants).

Overall status

- Product controls: largely present (opt-in, STOP/unsubscribe, isolation, 2FA, purge).
- Public transparency: incomplete (Privacy Policy / Terms need clearer DPDP-oriented disclosure).
- Third-party delivery path: Alibaba CAMS + Meta WhatsApp (data leaves WapApp for delivery).
- Safe public claim today: do NOT claim "100% DPDP certified". Prefer transparent controls + disclosure language.

Plain-language status

We are not in a "zero control" state. Day-to-day messaging controls exist. The main open item is website and legal packaging: clearly explain roles, purposes, Alibaba/Meta processing, cross-border flow, opt-out, retention, and grievance contact. That gap should be closed to reduce future compliance risk.

2. Roles and responsibilities

2.1 WapApp customers (tenants)

Typically the Data Fiduciary for their end users / WhatsApp contacts. They decide why contacts are messaged and must have a valid basis (usually consent for promotional messaging). They remain responsible for lawful use of contact lists and WhatsApp/Meta policy compliance.

2.2 WapApp / Tekpro (platform)

Provides software and infrastructure. Processes account/billing/support data for customers. Also processes contact and message data to deliver WhatsApp services on customer behalf. Platform duties include security, purpose limitation for platform processing, and clear notices.

2.3 Alibaba Cloud CAMS + Meta WhatsApp

Service providers / sub-processors for WhatsApp Business API routing and delivery. WapApp currently uses Alibaba CAMS (default endpoint region: cams.ap-southeast-1.aliyuncs.com, typically Singapore) and Meta WhatsApp for message delivery and status webhooks.

3. Existing product controls (findings)

3.1 Consent and messaging controls

- Opt-in templates and audience opt-in status tracking for contacts.
- Campaign policy confirmation: customer must confirm recipients agreed to receive WhatsApp messages.
- Default opt-in style messaging includes STOP-oriented opt-out language.
- Signup consent records during registration steps.
- WhatsApp / ISV terms acceptance during onboarding.

3.2 Withdrawal of consent / opt-out

- Inbound STOP / STOP promotions keywords unsubscribe the contact.
- START keyword can re-subscribe where applicable.
- Public unsubscribe link (token-based) for list/campaign unsubscribe.
- Outbound messaging blocked for STOP / unsubscribed contacts.
- Inbox UI shows STOP status so agents do not continue messaging opted-out users.

3.3 Security and access

- Multi-tenant isolation (customer data separated by tenant).
- Authentication with two-factor authentication (2FA) support.
- Team permission controls for feature access.
- Optional phone masking in inbox presentation.
- HTTPS / application access controls as part of normal platform security posture.

3.4 Retention and deletion

- Soft-deleted contact purge after a retention window.
- Admin retention views and expired / purge-marked account handling.
- Account wipe / purge related operational flows for closed or expired customers.
- Some operational notices already reference retention consistent with Privacy Policy.

4. Alibaba / Meta data flow (detailed finding)

Yes - personal data used for WhatsApp messaging goes to Alibaba, and then to Meta, because that is how delivery works on the current stack. This is expected for a WhatsApp Business API platform using Alibaba CAMS.

4.1 Data that typically crosses

- Recipient and business WhatsApp phone numbers
- Message / template content and parameters
- Media attachments when sent or received
- Delivery and status webhook events

4.2 Why this is not automatically unlawful

DPDP does not prohibit all cross-border processing. Using a cloud BSP/API provider to deliver WhatsApp messages is normal and often unavoidable. The compliance question is whether sharing is disclosed, purpose-limited (delivery), and supported by contractual/security safeguards.

4.3 When it becomes a problem

- Privacy Policy / Terms hide Alibaba, Meta, or overseas processing.
- Customers are not told contact data passes through these providers.
- Data is used beyond delivery needs without disclosure.
- Vendor safeguards / contracts are unclear or missing.

Suggested disclosure wording (concept for legal review)

To deliver WhatsApp messages, we use Alibaba Cloud CAMS (WhatsApp Business API provider; processing may occur outside India, e.g. Singapore) and Meta Platforms (WhatsApp). Phone numbers, message content, and related delivery data are shared with them only to send/receive WhatsApp communications and related delivery status processing.

Key sentence

Data going to Alibaba is not itself the core issue. Hiding that fact is the issue. Disclose + contract + controls is the safe posture.

5. Penalties under DPDP Act, 2023 (context)

The DPDP Act allows the Data Protection Board of India to impose monetary penalties after inquiry, where breach of the Act/Rules is significant. Figures below are maximum ceilings from the Act Schedule (Section 33). They are NOT automatic fines for every gap.

Breach type (summary)	Maximum penalty
Failure of reasonable security safeguards (s.8(5))	Up to Rs 250 crore

Failure to notify Board / affected persons of breach...	Up to Rs 200 crore
Children-related obligations (s.9)	Up to Rs 200 crore
Significant Data Fiduciary additional duties (s.10)	Up to Rs 150 crore
Other Act / Rules non-compliance	Up to Rs 50 crore
Data Principal duties (s.15)	Up to Rs 10,000

How Board decides amount (high level)

- Nature, gravity and duration of the breach
- Type of personal data affected
- Whether breach is repetitive
- Gain made / loss avoided
- Mitigation actions and how quickly they were taken
- Proportionality and deterrence
- Likely impact of the penalty on the person

Practical reading for WapApp

Largest penalties are aimed at serious failures (especially security and breach notification). An incomplete website policy alone does not automatically equal the maximum fine. However, ignoring disclosure, security, and rights processes increases risk if an inquiry occurs. Closing documentation gaps now is preventive hygiene.

6. Gaps identified

- Publish a clear Privacy Policy: roles, data categories, purposes, processors, cross-border transfer, retention, rights.
- Publish Terms of Use: customer responsibility for lawful consent and WhatsApp/Meta policy compliance.
- Publish grievance / privacy contact (email + expected response handling).
- Confirm vendor contractual safeguards with Alibaba / Meta (legal ownership).
- Ensure signup, billing and footer links point to real, updated policy pages.
- Optional later: product workflow for access / correction / erasure requests.
- Do not market "fully DPDP certified" without formal legal process.

7. Website disclosure checklist

7.1 Privacy Policy should include

- Who we are; platform role vs customer (tenant) role
- Categories of personal data (account, WhatsApp business assets, contacts, messages, logs)
- Purposes (delivery, campaigns, inbox/chatbot, billing, support, security)
- Alibaba CAMS + Meta WhatsApp as processors / service providers
- Cross-border / outside-India processing disclosure
- Consent, STOP/unsubscribe and related customer obligations
- Retention and deletion overview
- High-level security measures
- How to exercise rights and raise a grievance

7.2 Terms of Use should include

- Customer must have lawful basis/consent before messaging contacts
- No purchased/cold lists that violate WhatsApp or applicable law
- Customer remains responsible for end-user communications on their account

- Platform may restrict/suspend misuse that risks quality or legal exposure

7.3 Recommended site placement

- Dedicated Privacy Policy page
- Dedicated Terms of Use page
- Links from signup, billing, and website footer
- Optional short sub-processors note (Alibaba, Meta, payment, email providers as applicable)

8. Readiness snapshot

Area	Product	Website / Legal
Opt-in / STOP / unsubscribe	Ready	Describe in Privacy Policy
Tenant isolation / 2FA	Ready	High-level security note
Retention / purge	Ready	Describe retention overview
Alibaba / Meta transfer	Happening	Must disclose clearly
Rights / grievance channel	Weak	Must publish process + contact
Vendor contracts / DPA	Legal check	Confirm and reference safeguards
Customer fiduciary duties	Partial in UI	Make explicit in Terms
Public "DPDP certified" claim	Not supported	Avoid until legal sign-off

9. Risk reading (findings-based)

- Not a "no controls" situation: messaging consent/opt-out/security building blocks exist.
- Main residual risk: incomplete public disclosure of processors and cross-border delivery path.
- Secondary residual risk: rights/grievance channel not clearly published.
- Highest statutory penalty ceilings exist in law, but apply after Board process and depend on severity.
- Immediate practical mitigation: publish reviewed Privacy Policy + Terms with Alibaba/Meta disclosure.

10. Recommended next steps

- 1. Legal review of these findings and approve public disclosure wording.
- 2. Draft/update Privacy Policy and Terms of Use (include Alibaba + Meta + overseas processing).
- 3. Publish pages on WapApp site; link from signup, billing, and footer.
- 4. Add visible privacy / grievance contact email and handling process.
- 5. Confirm vendor contractual safeguards with Alibaba/Meta.
- 6. Keep product controls maintained (STOP, opt-in, access control, purge).
- 7. Later (if needed): structured access/erasure request workflow in product.

Suggested public claim language (for legal review)

We design WapApp to support applicable data-protection obligations by providing consent and opt-out controls, access security, tenant isolation, and transparent disclosures about how WhatsApp delivery providers process data. Our customers remain responsible for lawful use of contact data on their accounts.

11. Source notes used for this findings pack

- WapApp 2.0 product behaviour: opt-in, STOP/START, public unsubscribe, tenancy, 2FA, retention/purge, campaign policy confirmation.
- Technical delivery path: Alibaba CAMS endpoint configuration (ap-southeast-1) and Meta WhatsApp delivery chain.
- DPDP Act, 2023 - Section 33 and Schedule (monetary penalty ceilings).

- DPDP Rules, 2025 / Gazette G.S.R. 846(E) (official Hindi + English notification reviewed for context).
- English-only Rules extract and full bilingual Gazette PDF were compared: same Rules; language differs; full Gazette contains both languages.

End of findings document. Before publishing any public policy, replace placeholders (legal entity name, registered address, privacy email) and obtain legal review.